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INDIA

Conflict with Pakistan over Kashmir and communal violence dominated human rights developments in India during the year. The Hindu nationalist Indian People's Party (Bharatiya Janata Party or BJP), which led India's coalition government during the year, appeared to condone the activities of right-wing Hindu groups responsible for attacks on religious minorities and people at the bottom of or outside India's caste system, including members of tribal groups. The attacks increased significantly in the months preceding national parliamentary elections in September and October. In Bihar, a series of caste clashes and massacres between January and April once again revealed the unwillingness of state authorities to protect the rights of those born into lower castes.

Human Rights Developments

In April the BJP government lost a motion of confidence in Parliament by one vote. Because opposition parties were unable to form a government, India was forced to hold national parliamentary elections for the third time in as many years. In October the BJP-led National Democratic Alliance returned to power, a development that boded ill for communal relations.

Human rights violations by Indian security forces and by Islamic militants, many of them Pakistani-trained, continued to fuel tensions within Kashmir and between India and Pakistan. In February, Indian Prime Minister Atal Behari Vajpayee's bus trip across the Indo-Pakistan border to meet with Pakistani Prime Minister Nawaz Sharif seemed to signal the beginnings of a reconciliation and hopes for a resolution of the Kashmir conflict. However, those hopes were short-lived. In April India tested ballistic missiles and Pakistan followed suit. In May, after Islamic militants crossed from Pakistan into Indian Kashmir near the town of Kargil, India responded with military operations against the militants and their Pakistani backers. Armed clashes between India and Pakistan continued for the next eight weeks, until Pakistan agreed to withdraw the militants, and both countries agreed on a process of "disengagement."

In the course of those clashes, over 1,200 people, many of them civilians, were killed by artillery fire. Civilians were also forced to flee the towns along the 720-kilometer border that divides Indian and Pakistani-controlled Kashmir. Communal violence between Hindu and Muslim groups escalated during the military confrontation, particularly in Jammu, the Hindu-majority area of the state of Jammu and Kashmir. For example, on June 30, Islamic militants gunned down twelve Hindu migrant laborers in southern Kashmir, reportedly in retaliation for the June 28 massacre of fifteen Muslim villagers, including women and children, by unidentified gunmen in Poonch district. Human rights activists reported that the gunmen were members of a militia backed by the army. Pakistan's agreement on July 4 to withdraw its fighters did not bring an end to the violence. On July 20 about twenty Hindus were killed by militants in Doda and Poonch districts. The victims included eight women and children.

Indian security forces in Jammu and Kashmir continued to violate human rights with impunity. The Jammu and Kashmir Disturbed Areas Act and the Armed Forces Special Powers Act, which authorize warrantless searches and arrests, remained in effect in the state. Military-led cordon-and-search operations in Muslim neighborhoods continued to result in violations of fundamental civil rights, including the detention, torture, and summary executions of suspected militants.

Caste violence assumed alarming dimensions early in the year, particularly in the state of Bihar, where clashes between the Ranvir Sena, an upper-caste landlord militia, and Naxalites, Maoist guerrillas agitating for higher wages and more equitable land distribution for lower-caste laborers, claimed many lives. Human rights activists charged the state administration with criminal negligence for failing to intervene effectively and prosecute those responsible for the killings. On January 25, about one hundred armed extremists from the Ranvir Sena killed at least twenty-two Dalit ("untouchable") men, women, and children in Bihar's Jehanabad district. On February 10, Sena members struck again in the same district killing eleven Dalits as they slept.

The massacres led the government in New Delhi to impose "president's rule" in Bihar, a legal regime whereby the central government takes over authority from the state. Despite that measure, which led to the increased presence of paramilitary forces in the state, twelve alleged supporters of the Ranvir Sena were reportedly gunned down on February 14 by Communist Party of India-Marxist Leninist (Liberation) activists in retaliation for the January killings. In early March the central government reinstated the state government led by Chief Minister Rabri Devi. On March 18, Naxalites killed another thirty-five upper-caste villagers in Senari village, Jehanabad district. On April 21, about a hundred armed activists from the Ranvir Sena killed twelve lower-caste villagers in neighboring villages in Gaya district. The victims included a sixty-five-year-old man, three women, and a nine-month old child. Police made little effort to prevent the killings, despite the fact that the Ranvir Sena often publicly announced its intentions days before each attack. They also failed to provide protection for villagers in the aftermath of such attacks.

Caste clashes also continued to plague the southern state of Tamil Nadu, and Dalit women were primary targets. On March 29, in the Ogalur-Villupuram region of Tamil Nadu, four upper-caste men sexually assaulted a female Dalit farm laborer. The attackers were then beaten by those responding to the laborer's cry for help. On April 3, in retaliation for the beatings, three upper-caste men set fire to a Dalit colony, injuring twenty people. On June 19 a gang of upper-caste Hindus looted and destroyed the houses in a Dalit settlement in Kodankipatti village, Madurai district, after Dalits there had demanded a share in the common property of the village. The Dalits were then chased out of their homes.

More incidents of violence against India's Christian community were recorded during the past two years than in all the years since independence. Attacks occurred primarily in the tribal regions of Gujarat, Madhya Pradesh, and Orissa, as well as the state of Maharashtra. Activists belonging to militant Hindu extremist groups, including the Bajrang Dal and the Vishwa Hindu Parishad (World Hindu Council, VHP) were often blamed for the violence. While the central government officially condemned the attacks, spokespersons for the BJP characterized the surge in violence as a reaction to a conversion campaign by Christian missionaries in the country.

Anti-Christian violence in the state of Gujarat reached its peak during Christmas week 1998 when a local extremist Hindu group obtained permission to hold a rally on December 25 in Ahwa town in the state's southeastern Dangs district. Over four thousand people participated in the rally, shouting anti-Christian slogans while the police stood by and watched. After the rally, Hindu groups began to attack Christian places of worship, schools run by missionaries, and shops owned by Christians and Muslims. Between December 25, 1998, and January 3, 1999, churches and prayer halls were damaged, attacked, or burned down in at least twenty-five different villages in the state. Scores of individuals were physically assaulted, and in some cases tied up, beaten and robbed of their belongings while angry mobs invaded and damaged their homes. Thousands of Christian tribals in the region were also forced to undergo conversions to Hinduism.

On January 23 in Keonjhar district, Orissa, a mob of Hindu extremists burned to death Australian missionary Graham Stewart Staines and his two sons as they slept in their car. Staines had worked for over thirty years in a leper colony in the state and was accused of conducting mass conversions to Christianity. In August a government-appointed judicial commission accused Bajrang Dal activist and BJP member Dara Singh of leading the charge in the killings. The commission's report also found that Staines had not been involved in any conversions, but it fell short of accusing the Bajrang Dal, insisting that Singh acted alone. Opposition parties labeled the report a "whitewash," while allies of the BJP by and large welcomed the findings.

The Shiv Sena, a Hindu party which heads the state government of Maharashtra in coalition with the BJP, also engaged in disruptive practices and hate campaigns against Muslims and Christians throughout the year. In December 1998, the award-winning film *Fire*, by director Deepa Mehta, was recalled from theaters after Shiv Sena activists vandalized at least fifteen cinemas where it was playing. Sena members objected to the film's depiction of a lesbian relationship between two Hindu sisters-in-law, adding that had the women been Muslim there would be no objection.

In January 1999, when Pakistan's cricket team was set to travel to India for a series of test matches, members of the Shiv Sena dug up the pitch at a New Delhi stadium that was to host the first match and ransacked the headquarters of the Board of Control for Cricket in Bombay. In June, the Shiv Sena launched a series of attacks against Christian mission-run kindergarten schools alleging that they were not admitting the children of Sena activists. On June 26 suspected Sena members vandalized the Sacred Heart school in Worli, Bombay.

On August 26 Staines' killer Dara Singh struck again, when he led an angry mob to attack the garment shop of Sheikh Rehman, a Muslim trader in Orissa's Mayurbhanj district. In the presence of four hundred eyewitnesses and in broad daylight, Rehman's arms were chopped and his body was set on fire. Singh continued to evade arrest despite his numerous television appearances in the months following the Staines murder. One week later, on September 2, the Rev. Arul Doss was killed by a gang of fifteen unidentified assailants. Voting in Orissa for the staggered general elections was scheduled for September 25. On September 20, a Catholic nun in Bihar was abducted by two men, stripped, and forced to drink their urine. The nun was reportedly interrogated about her proselytizing activities.

Violence remained a salient feature of India's national parliamentary elections. During five stages of polling in September and October 1999, repolling was ordered for hundreds of poll stations as a result of violence and the destruction of ballot papers and ballot boxes. Well over one hundred election-related deaths were reported throughout the country, predominantly in Maharashtra, Andhra Pradesh, Kashmir, Bihar, and the northeast region of Assam and Tripura. Most deaths resulted from clashes between supporters of rival parties and from attacks by separatist militants trying to enforce election boycotts. In the Chidambaram constituency of Tamil Nadu, Dalits were not allowed to vote in as many as twenty-three villages as a result of attacks by political parties contesting elections in which the Dalit Panthers of India were also candidates. In clashes that ensued, nearly ten Dalit hamlets were torched. While over two hundred Dalits were arrested, police refused to register cases against caste Hindus.

Police in Andhra Pradesh continued to summarily execute suspected Naxalites in so-called "encounter killings." Violence in the northeastern states, particularly Assam, continued throughout the year, claiming many civilian casualties. Members of the United Liberation Front of Assam (ULFA), a militant group seeking Assam's independence from India, repeatedly clashed with the police and with surrendered ULFA members, now working with the government and referred to as "SULFA."

The Armed Forces Special Powers Act remained in effect in the northeast, but it was not the only abusive law on the books. Due to the spurious backdating of violations, detentions under the notorious Terrorist and Disruptive Practices (Prevention) Act (TADA) continued for offenses allegedly committed before the law lapsed in 1995. In Karnataka, for example, fifty-two people remained in pre-trial detention in Mysore Central Prison for periods ranging from four to six years.

Women, particularly those belonging to the lower castes, continued to be victims of violence and sexual abuse. In a positive step to promote gender equality, the Supreme Court of India gave women the same rights as men to act as natural guardians of a minor. Gita Hariharan's application for financial bonds in the name of her minor child had been rejected by the Reserve Bank of India on the basis of the Hindu Minority and Guardianship Act of 1956, which regards the father, and only after him the mother, as the natural guardian of a minor. The Supreme Court ruled that the provision "after" had to be struck down from the act as it violated gender equality.

Defending Human Rights

India's vibrant human rights movement continued to grow despite some setbacks. While most organizations were allowed to function freely, social action groups working with marginalized

communities faced continuous harassment and intimidation. On December 10, 1998, the National Campaign on Dalit Human Rights was officially launched in New Delhi. Among the campaign's demands were the abolition of untouchability practices, the effective implementation of the 1989 Scheduled Castes and Scheduled Tribes (Prevention of Atrocities) Act, and increased intervention by U.N. bodies and the international community against caste-based violence and discrimination.

On February 11, members of Parivartan, an NGO working with Dalits and landless agricultural laborers in Gujarat, were attacked in Padra village. Sixteen Dalit women, who had come to attend a tailoring course organized by Parivartan's women's co-operative, were among those physically assaulted by local strongmen. Police officials agreed to register a complaint only after the Home Ministry's intervention. In 1998, the Hindu group VHP had issued a press statement claiming that Parivartan was trying to convert Gujarat's entire tribal belt to Christianity—a charge that the NGO has denied. On June 11, four fishworkers were killed and thirteen were injured when police opened fire on an anti-shrimp culture protest organized by the NGO Chilika Matsyajibi Mahasangh in Orissa. Despite a Supreme Court ruling prohibiting shrimp farms within a thousand meters of the Chilika lake in Orissa, a number of shrimp farms had obtained support of local politicians and bureaucrats.

On July 23, police action against lower-caste laborers in Tirunelveli district, Tamil Nadu, resulted in the loss of seventeen lives. The victims, including two women and one child, were among those protesting working conditions at a local tea plantation and demanding the release of 652 workers arrested following a demonstration on June 8. Members of the police and reserve forces chased the victims into the Thamiraparani river where they drowned. In July, political parties in favor of the building of the Sardar Sarovar dam across the Narmada river in western India burned copies of the book, *The Greater Common Good* by novelist-activist Arundhati Roy. Roy, whose book discussed the social and environmental costs of the Narmada project, including large-scale population displacement, was part of a larger people's movement against India's big dam projects. Facing threats from the youth wings of the BJP and the Congress party, bookstores in Ahmedabad city, Gujarat, also began to pull the book from their shelves.

On September 27, the Ministry of Home Affairs sent a notice to several prominent NGOs asking them to justify their status as nonpolitical organizations under the Foreign Contribution (Regulation) Act. The notice was effectively a threat to cut off foreign funding. The NGOs, many of whom worked on women's rights, communal violence, and Dalit and tribal issues, had publicly criticized the policies of the BJP-led government and the anti-secular activities of the sangh parivar, a collective of rightwing Hindu organizations of which the BJP is a member.

The National Human Rights Commission (NHRC), a government-appointed body, tried to defend human rights in several areas, although it did not directly address the troubled regions of Kashmir and the northeast. In February the NHRC directed state governments to ensure regular medical examinations of all prison inmates and to submit monthly reports. Concerned over the rising number of custodial deaths and excesses committed by the police, the NHRC launched human rights cells in all state police headquarters. The commission also ordered the payment of compensation to the families of persons who had either died as a result of police violence or had been physically assaulted by the police, and recommended action against guilty police officials.

The Role of the International Community

Tensions between India and Pakistan dominated India's international relations during the year. Many countries welcomed the Indo-Pakistan summit in February, but while crediting India with showing "restraint" in its handling of the Kargil crisis, the international community failed to use the opportunity to press India to curb human rights abuses in the state.

United Nations

While Pakistan demanded U.N. mediation in the Kashmir dispute, the Indian prime minister rejected an offer by the U.N. secretary-general to send an envoy. In a report issued in January, the U.N. special rapporteur on torture commented on India's abysmal record on torture and detentions, especially in Jammu and Kashmir, and noted with regret the government's continued refusal to extend him an invitation to conduct investigations in the country. Also in January, the special rapporteur on

contemporary forms of racism indicated that, with the permission of the Indian government, he might undertake a field mission to investigate the situation of "untouchables" in the country.

World Bank

In April the World Bank board approved a controversial plan limiting the powers of the inspection panel, an internal watchdog body set up to receive and investigate complaints by those adversely affected by bank-funded projects worldwide. Following a visit in July 1997, the inspection panel was blocked from conducting a more thorough investigation in Singrauli, India's "power capital," where a World Bank-funded thermal power project resulted in the displacement of thousands of villagers and severe environmental damage. India was prominent among World Bank member countries pushing for limiting inspection panel investigations.

European Union

The European Union (E.U.) joined the international community in expressing concern over the escalation of fighting in Kashmir, and issued several statements publicly urging India and Pakistan to hold talks to find a peaceful solution to the crisis. The E.U. remained India's largest trading partner, with an estimated 26 percent share of India's export and 25 percent of the country's imports. In a February resolution the European Parliament expressed deep shock over the persecution of Christians in India by extremist groups and called on the Indian government to put in place effective measures for protection of religious minorities and to bring to justice those responsible for the killing of Australian missionary Graham Staines. The European Parliament also called on the E.U. and the European Commission to ensure that human rights clauses in treaty agreements with India be rigorously implemented. A legally binding partnership and development agreement between India and the E.U. concluded in 1994 contains such a human rights conditionality clause.

In March, the European Parliament expressed support for the European Commission's efforts to enhance relations with India but said improved relations should depend in part on India's nuclear disarmament. The European Parliament also urged India to foster tolerance and protect freedom of religion; to ratify the torture convention; and to impose a moratorium on executions and step up efforts to abolish the death penalty.

Japan

In response to India's nuclear tests in May 1998, Japan halted all new grant aid (with the exception of emergency and humanitarian aid and grant assistance for grassroots projects) and all new yen loans in accordance with Japan's Overseas Development Assistance (ODA) Charter. The suspension remained in effect in 1999.

United States

The Clinton Administration dropped its objections to a U.S. \$150 million World Bank loan request by India for a power project. In June the U.S. Senate approved a measure lifting sanctions on the sale of farm commodities and other products to India and Pakistan. The sanctions, which had been triggered by India's May 1998 nuclear tests, were to remain in place for missile and nuclear technology and for military sales. The Clinton administration joined the international community in expressing concern over India and Pakistan's ballistic missile tests in April, and over the conflict in Kargil. In September the U.S. Department of State released its first annual report under the 1998 International Religious Freedom Act, detailing attacks on religious minorities throughout India. Responding to reports that U.S. Ambassador Robert Seiple wished to visit the country to discuss religious rights, the Indian government defended its ability to guarantee constitutionally mandated religious freedoms and rejected any "intrusive exercise" into its internal affairs.